

6 August 2026

GUIDELINE FOR THE COMPLETION OF THE ANNUAL SUBMISSION OF COMPLIANCE INFORMATION FORM (OF-RDN-NM-06A, REPLACING OLD FORM: 41BM-2)

The objective of this guideline is to give clear guidance on the Annual Submission of Compliance Information process from the perspective of an importer/ License Holder and Completion of the Annual submission of Compliance Information Form (OF-RDN-NM-06A, replacing Old Form: 41BM-2).

Document History

Final Version	Reason for Amendment	Effective Date
1	– First issue.	November 2024
2	– This guideline replaces the old 41BM-2A, the ASOCI-Guidelines and Corrections that were not aligned to SAHPRA's QMS documentation structure	August 2026

DR BOITUMELO SEMETE-MAKOKOTLELA
CHIEF EXECUTIVE OFFICER

Contents

Document History.....	1
Glossary	4
1. INTRODUCTION	5
1.1 PURPOSE.....	5
1.2 SCOPE	6
2. LEGISLATIVE FRAMEWORK	6
3. COMPLETION OF THE ANNUAL SUBMISSION OF COMPLIANCE INFORMATION FORM (OF-RDN-NM-06A)....	7
Classification and Conformity Assessment Requirements	8
Submission Format	10
4. DISTRIBUTION OF THE ANNUAL SUBMISSION OF COMPLIANCE INFORMATION FORM	10
4.1 Compliance Groups	10
4.2 Distribution of the Annual Submission of Compliance Information Form	11
4.3 Submission Period	11
5. ASSESSMENT OF THE ANNUAL SUBMISSION OF COMPLIANCE INFORMATION	11
5.1 Receipt of Submissions.....	11
5.2 Assessment of Submissions	12
5.3 Requests for Additional Information.....	12
5.4 Updating of Compliance Status	12
5.5 Processing Timeframes.....	12
6. FAILURE TO SUBMIT THE ANNUAL SUBMISSION OF COMPLIANCE INFORMATION	12
6.1 Notice of Non-Compliance	12
6.2 Opportunity to Remedy the Non-Compliance	12
7. CANCELLATION OF LICENCES ARISING FROM NON-COMPLIANCE.....	12
7.1 Regulatory Action	13
7.2 Notification of Cancellation	13
7.3 Submission of New Applications	13
8. ISSUANCE OF UPDATED LICENCE DOCUMENTS	13
8.1 Updated Licence Documents.....	13
8.2 Content of Updated Licence Documents	13
8.3 Timeframe	13
9. LICENCE CONDITION 9	13

10. REFERENCES..... 14

11. VALIDITY 14

APPROVED

Glossary

Abbreviation/ Term	Meaning
ASOCI	Annual Submission of Compliance Information
License Holder	Refers to the holder of a licence, granted by the Regulator, under the Hazardous Substances Act (Act no. 15 of 1973).
MEDSALE	Database used to capture licensing information on an Oracle platform
SAHPRA	South African Health Products Regulatory Authority

1. INTRODUCTION

The South African Health Products Regulatory Authority (SAHPRA) is mandated, in terms of the **Hazardous Substances Act, 1973 (Act No. 15 of 1973)** ("the Act") and the Regulations promulgated thereunder, to regulate the importation, sale, letting, use and continued compliance of listed electronic products, including electromedical devices.

In fulfilment of this mandate, SAHPRA requires all Licence Holders of licensed electromedical devices to demonstrate continued compliance with the conditions of their licences through the annual submission of current regulatory and conformity assessment information.

Licence Condition 9 forms an integral part of every licence issued in respect of an electromedical device and requires Licence Holders to maintain current conformity assessment documentation and to provide such information to SAHPRA upon request or during the annual compliance review process.

The Annual Submission of Compliance Information (ASOCI) process enables SAHPRA to verify the continued validity of conformity assessment documentation, regulatory certification and other supporting information to ensure that licensed electromedical devices continue to comply with the applicable legislative and regulatory requirements throughout the validity period of the licence.

1.1 PURPOSE

The purpose of this Guideline is to prescribe the regulatory requirements, administrative procedures and compliance obligations applicable to Licence Holders required to complete and submit the **Annual Submission of Compliance Information Form (OF-RDN-NM-06A)**, which replaces the legacy **Form 41BM-2**.

This Guideline establishes a uniform administrative framework for the annual submission, assessment and maintenance of compliance information relating to licensed electromedical devices and provides guidance on the regulatory actions that may arise during the annual compliance review process.

More specifically, this Guideline sets out the requirements relating to:

- the annual distribution of the Annual Submission of Compliance Information Form;
- the submission of annual compliance information by Licence Holders;

- the assessment and verification of submitted information by SAHPRA;
- requests for additional information or clarification, where necessary;
- the updating of regulatory compliance records;
- regulatory action arising from non-submission, late submission, incomplete submission or the submission of deficient information;
- the cancellation of licences where regulatory requirements are not satisfied; and
- the issuance of updated licence documentation following completion of the annual compliance review process.

1.2 SCOPE

This Guideline applies to every Licence Holder holding one or more valid licences issued by SAHPRA in respect of electromedical devices to which Licence Condition 9 applies.

The provisions of this Guideline are applicable to:

- importers of listed electromedical devices;
- Licence Holders authorised to import, sell, let, distribute or otherwise place licensed electromedical devices on the South African market;
- authorised regulatory representatives acting on behalf of Licence Holders;
- persons responsible for maintaining regulatory documentation relating to licensed electromedical devices; and
- SAHPRA personnel responsible for the administration, assessment, processing, maintenance and oversight of licensing and compliance records.

This Guideline applies irrespective of whether the licensed electromedical device has been certified under the applicable European Medical Device Directives or **Regulation (EU) 2017/745 on Medical Devices (MDR)**, provided that the conformity assessment documentation remains valid and is recognised under the applicable legislative and regulatory framework.

2. LEGISLATIVE FRAMEWORK

This Guideline shall be read in conjunction with the following legislation and subordinate legislation:

2.1 The Hazardous Substances Act, 1973 (Act No. 15 of 1973), which provides the legislative authority for the regulation and control of listed electronic products.

2.2 Regulation R.690 of 14 April 1989, promulgated under the Hazardous Substances Act, governing the licensing of persons engaged in the sale, letting and use of listed electronic products.

2.3 Regulation R.1302 of 14 June 1991, prescribing the Schedule of Listed Electronic Products subject to the licensing requirements of the Act.

3. COMPLETION OF THE ANNUAL SUBMISSION OF COMPLIANCE INFORMATION FORM (OF-RDN-NM-06A)

Licence Holders shall complete and submit the **Annual Submission of Compliance Information Form (OF-RDN-NM-06A)** in accordance with the requirements prescribed in this Guideline.

The information submitted shall be complete, accurate, current and supported by the applicable conformity assessment documentation and any additional information that may be required by SAHPRA for the purposes of regulatory assessment.

The submission of incomplete, inaccurate, misleading or false information, or the failure to submit the required information within the prescribed timeframe, may constitute non-compliance with the conditions of the licence and may result in regulatory action in accordance with the **Hazardous Substances Act, 1973 (Act No. 15 of 1973)**, the applicable Regulations and the conditions of the licence.

Licence Holders shall ensure that all information submitted to SAHPRA remains current throughout the assessment process and shall promptly notify SAHPRA of any material changes affecting the information previously submitted.

The following instructions shall be followed when completing the Annual Submission of Compliance Information Form (OF-RDN-NM-06A).

COLUMN	INSTRUCTION
(i), (ii)	Data provided by SAHPRA – DO NOT ALTER. Indicate corrections to any product model name (ONLY for EXISTING licenses on the attached list) on the separate sheet marked “CORRECTIONS”. Copy the license number from the original list and supply all the other data as required. Strike through and/ or mark as “OBSOLETE” any products that are obsolete or which are not being imported anymore for whatever reason – these licenses will then be cancelled.
(iii)	Classification and Conformity Assessment Requirements Licence Holders shall indicate the classification of each licensed medical device model in accordance with the applicable conformity assessment legislation, namely: • Annex IX of Council Directive 93/42/EEC (Medical Devices Directive); • Council Directive 90/385/EEC (Active Implantable Medical Devices Directive); or • Regulation (EU) 2017/745 on Medical Devices (MDR), as applicable. For the purposes of the Annual Submission of Compliance Information, SAHPRA will accept the following evidence of conformity assessment, provided that the documentation remains valid and applicable at the time of submission: • valid certificates issued under Regulation (EU) 2017/745 (MDR); • valid legacy certificates issued under Council Directives 93/42/EEC or 90/385/EEC that continue to be recognised during the applicable MDR transitional period; • manufacturer declarations or attestations confirming the continued validity of the certification; and • correspondence issued by the Notified Body, where applicable, confirming the regulatory status of the certification. Note: The provision of the requested information is not mandatory where Annex II has been indicated in Column (iv) of the Annual Submission of Compliance Information Form

	or where the medical device is classified as an Active Implantable Medical Device under the applicable regulatory framework.
(iv)	Conformity Assessment Procedure Licence Holders shall indicate the applicable Annex(es) applied by the Notified Body during the conformity assessment procedure for each licensed medical device, in accordance with the relevant legislative framework. For devices certified under Council Directive 93/42/EEC (Medical Devices Directive) or Council Directive 90/385/EEC (Active Implantable Medical Devices Directive), the applicable Annex(es) shall be those prescribed for the conformity assessment procedures in terms of the respective Directive. For devices certified under Regulation (EU) 2017/745 on Medical Devices (MDR), Licence Holders shall indicate the conformity assessment procedure applied in accordance with the applicable provisions of the Regulation. The information provided shall correspond with the conformity assessment documentation and certificates issued by the relevant Notified Body.
(v)	Indicate the unique number of the EC Certificate issued by the Notified Body.
(vi)	Indicate the date (yyyy/mm/dd) on which the EC Certificate , mentioned in column (v), was issued, and signed by the Notified Body.
(vii)	Indicate the expiry date (yyyy/mm/dd) of the EC Certificate mentioned in column (v) (if this available).

(viii)	Indicate the unique four-character identification number of the Notified Body that issued the EC Certificate mentioned in column (v).
(ix)	Indicate the date (yyyy/mm/dd) on which the EC Declaration of Conformity for this product model was drawn up and signed by the manufacturer.

Please Note:

When submitting the completed **Annual Submission of Compliance Information Form (OF-RDN-NM-06A)**, Licence Holders **shall not** enclose or submit any additional supporting documentation unless such documentation has been specifically requested by SAHPRA.

Submission Format

The Annual Submission of Compliance Information process shall be conducted as follows:

- SAHPRA shall issue the **Annual Submission of Compliance Information Form (OF-RDN-NM-06A)** to the Licence Holder in Microsoft Excel format.
- The Licence Holder shall complete the prescribed form in full and submit the completed form to SAHPRA in **Portable Document Format (PDF)**.
- The completed form shall be submitted electronically to the designated SAHPRA email address, Radcon.Asoci@sahpra.org.za.
- Forms that are incomplete, submitted in an incorrect format, or submitted together with unsolicited supporting documentation may be returned to the Licence Holder for correction prior to assessment.

4. DISTRIBUTION OF THE ANNUAL SUBMISSION OF COMPLIANCE INFORMATION FORM

4.1 Compliance Groups

For the purposes of the annual compliance process, SAHPRA has categorised Licence Holders into eight (8) compliance groups based on alphabetical order, namely:

- A–B

- C–F
- G–H
- I–L
- M
- N–R
- S
- T–Z

4.2 Distribution of the Annual Submission of Compliance Information Form

4.2.1 SAHPRA shall issue the Annual Submission of Compliance Information Form (OF-RDN-NM-06A, replacing Old Form: 41BM-2) electronically to the designated contact person of each Licence Holder within the applicable compliance group.

4.2.2 Distribution of the Annual Submission of Compliance Information Form shall commence annually from 1 April and continue in accordance with the established compliance schedule for each respective compliance group.

4.2.3 The electronic notification shall specify the submission requirements, the prescribed submission period and any additional information necessary to facilitate compliance.

4.3 Submission Period

Licence Holders shall submit a duly completed Annual Submission of Compliance Information Form, together with any supporting documentation requested by SAHPRA, within thirty (30) calendar days from the date of the electronic notification.

5. ASSESSMENT OF THE ANNUAL SUBMISSION OF COMPLIANCE INFORMATION

5.1 Receipt of Submissions

Completed Annual Submission of Compliance Information Forms shall be submitted to the designated SAHPRA electronic mailbox from which the original notification was issued.

5.2 Assessment of Submissions

Upon receipt, submissions shall be acknowledged and allocated to the responsible regulatory scientist for assessment.

5.3 Requests for Additional Information

Where the submitted information is incomplete or requires clarification, SAHPRA may request additional information or supporting documentation from the Licence Holder. The Licence Holder shall provide the requested information within the period specified by SAHPRA.

5.4 Updating of Compliance Status

Upon completion of the assessment, the Annual Submission of Compliance Information (ASOCI) status of each licence shall be updated accordingly within the SAHPRA regulatory records.

5.5 Processing Timeframes

Subject to the submission of a complete and satisfactory Annual Submission of Compliance Information Form, SAHPRA will endeavour to complete the assessment process within thirty (30) calendar days of receipt

6. FAILURE TO SUBMIT THE ANNUAL SUBMISSION OF COMPLIANCE INFORMATION

6.1 Notice of Non-Compliance

Where a Licence Holder fails to submit the completed Annual Submission of Compliance Information Form within the prescribed submission period, or where the submission is incomplete, SAHPRA shall issue a written Notice of Non-Compliance to the Licence Holder.

6.2 Opportunity to Remedy the Non-Compliance

The Notice of Non-Compliance shall afford the Licence Holder a period of five (5) working days within which to submit the outstanding information or otherwise remedy the non-compliance.

7. CANCELLATION OF LICENCES ARISING FROM NON-COMPLIANCE

7.1 Regulatory Action

Where a Licence Holder fails to remedy the identified non-compliance within the prescribed period, SAHPRA may, subject to the provisions of the Medicines and Related Substances Act, 1965 (Act 101 of 1965), the Hazardous Substances Act, 1973 (Act No. 15 of 1973), and the applicable Regulations, cancel the licence(s) relating to the affected medical device(s).

7.2 Notification of Cancellation

Following cancellation of the relevant licence(s), SAHPRA shall issue a formal Notice of Cancellation to the affected Licence Holder.

7.3 Submission of New Applications

Where a licence has been cancelled as a result of non-compliance, the Licence Holder shall be required to submit a new licence application for each affected medical device in accordance with the applicable legislative and regulatory requirements.

8. ISSUANCE OF UPDATED LICENCE DOCUMENTS

8.1 Updated Licence Documents

Following completion of the annual compliance assessment and the implementation of any resulting regulatory actions, SAHPRA shall issue updated licence documents to the relevant Licence Holders.

8.2 Content of Updated Licence Documents

The updated licence document shall reflect the current licensing status of the Licence Holder, including any amendments arising from the annual compliance assessment.

8.3 Timeframe

Subject to the approval of the Annual Submission of Compliance Information Form, SAHPRA will endeavour to issue updated licence documents within thirty (30) calendar days following completion of the assessment.

9. LICENCE CONDITION 9

In accordance with the conditions of the licence, the Licence Holder shall provide and maintain the following information:

- Classification in accordance with Annex IX of Council Directive 93/42/EEC, Council Directive 90/385/EEC, or Regulation (EU) 2017/745 (Medical Device Regulation).
- Conformity assessment Annex(es) applied.
- EC Certificate number(s).
- Date(s) of issue of the EC Certificate(s).
- Expiry date(s) of the EC Certificate(s).
- Notified Body identification number.
- Date of the manufacturer's EC Declaration of Conformity.

10. REFERENCES

This guideline shall be read in conjunction with the following legislation and associated documents:

- Annual Submission of Compliance Information Form (OF-RDN-NM-06A).
- Hazardous Substances Act, 1973 (Act No. 15 of 1973).
- Government Notice R.690 of 14 April 1989.
- Government Notice R.1302 of 14 June 1991.

11. VALIDITY

This Guideline shall remain valid for a period of five (5) years from its effective date and supersedes the previous **41BM-2A – ASOCI Guidelines and Corrections**. The Guideline shall be reviewed upon expiry of its validity period or earlier where amendments to the applicable legislation, regulatory requirements, or SAHPRA operational processes necessitate such review.